



VIRGINIA POLITICAL INTELLIGENCE PORTAL

2026 Democratic Agenda — Conflicts with the Virginia Constitution

Regular Session screen of Democratic chief-patron measures (passed, vetoed, or carried over)

Coraggio Consulting, LLC · Virginia Political Intelligence Portal · 9 September 2026

80 BILLS IN THIS ANALYSIS	35 PASSED AND APPROVED	23 CARRIED OVER TO 2027	15 PASSED THEN VETOED
-------------------------------------	----------------------------------	-----------------------------------	---------------------------------

Seven more in this file passed as constitutional amendments or related vehicles without the “approved” tag. Democrats carried roughly 1,628 chief-patron measures that either passed or were deferred in the 2026 Regular Session. This paper is not that whole pile. It is the 80-bill constitution-conflict set used for this analysis.

Executive Assessment

Bottom line. In the 2026 session, Democratic chief patrons did not treat the Virginia Constitution as a fence. They treated it as clay. They moved bills that rewrite who may vote, who may carry a gun, who may speak near a clinic or a campaign ad, how schools and courthouses deal with immigration enforcement, and—when ordinary statute was not enough—they tried to lock preferred policy into the Constitution itself so the next Assembly cannot casually unwind it.

That is the wrong posture for a legislature that swears to support the Constitution. The document already allocates power: the people keep rights in Article I; suffrage sits in Article II; schools, localities, courts, and money each have their own articles; amendments run through Article XII on purpose so hard changes are hard. When a caucus uses the amendment path to entrench contested social policy, or uses statute to shrink an Article I right, or uses charter special acts and statewide mandates to override local structure, it is not “modernizing.” It is rewriting the rulebook mid-game.

Where the pressure landed (most to least). Reading the conflict column across these 80 bills, Article I dominates—on the order of sixty mentions. That is rights, due process, arms, speech, equal protection, religion, and takings. Article II (elections and suffrage) is next, roughly twenty-one. Article XII (how you amend the Constitution) shows up about ten times—mostly because they are using the amendment machine to hard-wire policy. Then schools (Article VIII), local government (Article VII), special legislation and Assembly process (Article IV), and the judiciary (Article VI). Inside Article I, the hottest sections are §11 (due process / equal protection / property), §13 (arms and militia), §6 (free elections / consent of the governed), and §12 (speech, press, assembly).

What that means in plain English. They spent the session pressing the Bill of Rights and the suffrage article hardest, then used constitutional amendments to try to make some of those wins permanent. Guns, voting rules, speech near elections and clinics, immigration posture in schools and courthouses, and local charters are not side quests. They are the main attack lines in this file.

1. Elections and voter rules

What they did. Democrats advanced a package that rewrites who is in the electorate and how elections are run. Second-reference and referendum vehicles would put a “fundamental right to vote,” automatic restoration of voting rights when a felon leaves incarceration, and new incapacity language into Article II (HJ2, SJ2, HB963, SB6, and the related statutory implementer HB964). A first-reference amendment would let 16-year-olds vote in local elections (HJ45)—the Constitution now sets the age at 18. Mid-decade congressional map authority rides in HJ4 and the related referendum/appropriations bill HB1384. On the statute side: broader polling-place firearms and conduct zones at absentee sites (HB909); candidate and official address confidentiality that throttles public contact information (HB835, SB632); tighter or differently cabined list-maintenance rules (HB972, and vetoed HB111); a carried-over ban on “synthetic media” in campaign ads with civil and criminal teeth (HB868); a pilot for “super precincts” (HB235); and a vetoed attempt to reopen private funding of election administration (HB639). Large localities would be forced into single-member districts for governing bodies (HB168, SB51).

Why it conflicts. Article II already sets voter qualifications, restoration of political rights, and election administration. Automatic restoration and a lowered voting age are not housekeeping—they displace the present constitutional structure and try to lock the new rules through Article XII. Expanding exclusion zones and speech/conduct bans around voting sites presses Article I §13 (arms) and §6 / §12 (elections and speech). Hiding candidate identity information and regulating campaign message form are speech and petition problems under Article I §12 inside an Article II frame. Forcing district maps on localities overrides Article VII local structure. Private money into election administration reopens a firewall the Commonwealth has treated as part of free-election integrity under Articles I and II.

2. Guns and Article I, Section 13

What they did. The arms file is blunt. Statewide ban on carrying defined “assault firearms” in public places (HB1524). Under-18 possession/transport tightening and an under-21 purchase ban for listed firearms (HB1525). Misdemeanor hate-crime convictions used as a new firearms disability (HB1015). Civil penalty for a visible handgun left in an unattended vehicle (HB110). Local authority to criminalize outdoor shooting unless acreage and “reasonable care” rules are met (HB926, carried over). An 11 percent selective tax on firearms and ammunition (HB919, SB763, carried over). Polling-place arms exclusion pushed from 40 feet to 100 feet and extended to absentee sites (HB909). Militia and Guard command rules rewritten (HB1334, SB337).

Why it conflicts. Article I, Section 13 is not a suggestion. A statewide public-carry ban on common semi-automatic platforms, age-based purchase and possession shrinks, misdemeanor-based arms disabilities, selective taxes on the arms trade, and local criminalization of ordinary shooting are all attempts to shrink who may keep and bear arms and where. Wrapping some of those bans around identity and religion categories also pulls in Article I §§11 and 16. Militia expansions and legislative micromanagement of Guard deployment rewrite the arms-and-militia clause and the Governor’s traditional call-out authority.

3. Speech and assembly

What they did. SB137 creates criminal penalties for force, threat, or physical obstruction aimed at people obtaining or providing reproductive health services—or damaging such a facility—while claiming not to regulate message content. That is a clinic buffer-zone style rule. HB868 (carried over) bans electioneering communications with “synthetic media” unless a fixed disclaimer rides along, with five-figure civil penalties and a misdemeanor for willful violations. Candidate/official confidentiality bills (HB835, SB632) pull street addresses and contact data out of ordinary public view. Public campaign financing for local offices (HB162, carried over) uses public money and ordinance power to reshape campaign speech. HB1476 widens civilian-oversight access to sensitive records under closed-meeting FOIA cover. HB1473 scripts when public colleges may regulate outdoor student speech.

Why it conflicts. Article I, Section 12 protects speech, press, and assembly. Content-and-form rules aimed at campaign messages, buffer-style criminal rules around clinics, and statutory scripting of campus speech are the Assembly writing speech codes. Confidentiality that hides political actors from petitioners and the press presses the same section inside Article II elections. Public financing and special FOIA lanes for oversight bodies reshape who may speak, who is visible, and who gets government records—again under §12, with Article IV uniformity concerns when statewide transparency rules get carved up.

4. Immigration, schools, and the courthouse

What they did. HB650 and SB351 (both passed then vetoed) would have barred or tightly gated federal civil immigration arrests in courthouses and other “protected” sites—polling places, hospitals, schools, higher ed, Commonwealth’s Attorney offices—and privileged parties and witnesses from civil arrest around court attendance. HB836 and SB491 (passed and approved) bar denying free public K–12 education based on immigration or citizenship status and forbid listed school and SRO practices that would deny schooling or assist immigration enforcement on campus, with a civil cause of action on the Senate side.

Why it conflicts. Courthouse process and due-process expectations sit in Article I; court administration sits near Article VI. Using state criminal and process rules to wall off federal civil immigration enforcement is an override fight at the edge of state constitutional process and federal supremacy—not a housekeeping tweak. On the school side, Article VIII free schooling and Article I §11 equal-protection practice are being locked into an anti-enforcement posture that attempts to override cooperation choices schools and localities would otherwise make. That is policy by constitutional claim, not neutral education administration.

5. Constitutional amendments that lock policy

What they did. When statute was not enough, they used Article XII. Reproductive-freedom amendments and referendum bills would write a new “fundamental right” including abortion access into the Constitution and cabin later regulation (HB781, SB449, HJ1, SJ1). Marriage amendments repeal the man-woman definition and mandate equal treatment of marriages between two adults (HJ3, SJ3). Suffrage amendments and referenda hard-wire automatic rights restoration and related voter-qualification rewrites (HJ2, SJ2, HB963, SB6, HJ45). Apportionment amendments authorize mid-decade congressional map changes (HJ4, HB1384).

Why it conflicts. Article XII exists so the Constitution is hard to change. Using it to entrench contested social and suffrage policy displaces the present allocation of those questions to statute or to the existing Article I / Article II text. A later Assembly should not need a constitutional crisis to revisit abortion regulation, marriage definition, or voter-qualification details that today’s charter leaves to ordinary law or to a different restoration path. Mid-decade map power rewrites the apportionment and election framework the present text does not invite. The wrong is not that amendment is available. The wrong is treating amendment as a policy vault.

6. Local charters, districts, and Dillon Rule grants

What they did. Special-act charter bills for Fairfax and Williamsburg reset local election timing, tax caps, and board pay (HB1342, SB581, HB552). Statewide mandates force large localities into single-member governing-body districts (HB168, SB51). Carried-over HB278 would let any locality cap most rent hikes. HB334 (carried over) would let every locality referendum an extra local sales tax for school capital. Private-school tuition conditions and campus program mandates pull private and religious institutions toward public controls (HB359, SB97).

Why it conflicts. Article VII and the Dillon Rule say localities have the powers the Commonwealth grants—and special charter surgery sits in Article IV’s special-legislation lane. Forcing district systems overrides local charter choice about representation (also Articles I §6 and II). A statewide rent-cap grant puts localities into private contract and property territory under Article I §11. Broadening local school taxes and conditioning private tuition on public accountability standards stretches Articles VIII, X, and I §16 where religious schools are in the blast radius.

Full bill table

Eighty rows. Status, patron, title, and the full constitutional-conflict explanation for each. Link column dropped so the conflict text stays readable on a letter page.

LIS: every bill number resolves at <https://lis.virginia.gov/bill-details/20261/{Bill}>

Bill	Status	Patron	Title	Constitutional conflict
HB781	Passed and approved	Herring	Constitutional amendment; fundamental right to reproductive freedom (submitting to qualified voters)	This bill puts a referendum on the November 2026 ballot to write a new "fundamental right to reproductive freedom," including abortion access, into the Virginia Constitution and to shield patients and providers from punishment for those decisions. That would displace the General Assembly's ordinary power to set abortion policy under current law and lock the new rule into Article I territory, using the Article XII amendment process to entrench contested policy beyond ordinary statute.
SB449	Passed and approved	Boysko	Constitutional amendment; fundamental right to reproductive freedom (submitting to qualified voters)	Senate twin to the House reproductive-freedom referendum bill: it sends voters a proposed constitutional amendment guaranteeing decisions about reproductive health care, including abortion, and limiting third-trimester regulation except for life, health, or non-viability. It conflicts with the current Constitution's allocation of that policy to the legislature and tries to entrench the new right through Article XII so later Assemblies cannot casually unwind it.
HJ2	Passed	Bennett-Parker	Constitutional amendment; qualifications of voters and the right to vote; persons not entitled to vote	This second-reference amendment would rewrite voter qualifications so felons automatically regain the right to vote on release from incarceration, and would replace "mentally incompetent" language with a capacity-to-understand-voting standard. It displaces the present Article II rules that keep restoration of political rights a separate constitutional and statutory process and uses Article XII to hard-wire automatic restoration into the suffrage article.
HJ45	Carried over to 2027	Glass	Constitutional amendment; qualifications of voters; 16-year-olds permitted to vote	This first-reference amendment would let otherwise-qualified 16-year-olds register and vote in local elections even though the Constitution now sets the voting age at 18. It directly rewrites Article II voter qualifications and Article I, Section 6's free-elections frame by expanding the electorate through constitutional amendment rather than ordinary statute.
SJ2	Passed	Locke	Constitutional amendment (second reference); qualifications of voters and the right to vote; persons not entitled to vote	Senate companion second-reference amendment on voter qualifications: automatic restoration of voting rights for felons upon release, plus a revised incapacity standard. It overrides today's Article II disqualification and restoration structure and locks the new suffrage rules into the Constitution via Article XII.
HJ1	Passed	Herring	Constitutional amendment (second reference); fundamental right to reproductive freedom	Second-reference amendment declaring a fundamental right to reproductive freedom that may not be denied or burdened except by a compelling state interest using the least restrictive means, with narrow third-trimester limits. It attempts to rewrite the current Constitution's silence on abortion into an entrenched Article I-style right and to cabin the General Assembly's future regulatory power through Article XII.
SJ1	Passed	Boysko	Constitutional amendment (second reference); fundamental right to reproductive freedom	Senate twin second-reference reproductive-freedom amendment: same fundamental-right and compelling-interest framework, with third-trimester regulation only where life, health, or viability rules allow. It conflicts with the present constitutional allocation of that policy to statute and seeks to entrench the new right against ordinary legislative change.

Bill	Status	Patron	Title	Constitutional conflict
HB1384	Passed and approved	Torian	Constitutional amendment; general appropriation act; reapportionment; redistricting congressional districts	This bill sets up the special-election referendum and related appropriations machinery to submit a constitutional amendment tied to the general appropriation act and congressional redistricting. It uses the Article XII amendment path—and budget process under Articles IV and X—to put map-drawing and election timing questions before voters outside the usual decennial cycle described in the related apportionment amendments.
HB963	Passed and approved	Price	Constitutional amendment; qualifications of voters; right to vote; persons not entitled to vote	Puts a November 2026 referendum before voters to amend the Constitution: fundamental right to vote, automatic restoration of voting rights when a felon leaves incarceration, and updated incapacity language. That rewrites Article II's current qualifications and restoration rules and uses Article XII to lock the change into the suffrage article rather than leaving restoration to existing executive and statutory paths.
HJ4	Passed	Willett	Constitutional amendment; apportionment; congressional districts; limited authority of the General Assembly to modify	Second-reference amendment giving the General Assembly express power to redraw one or more congressional districts mid-decade if another state redistricts outside the normal cycle (or for non-court remedies), with a schedule limit on that authority. It rewrites the Constitution's present apportionment structure and Article II election framework to authorize mid-cycle map changes that today's text does not invite.
SB6	Passed and approved	Locke	Constitutional amendment; qualifications of voters; right to vote; persons not entitled to vote	Senate twin referendum bill for the suffrage amendment: fundamental right to vote, automatic restoration on release from incarceration, and revised incapacity language. Same conflict as the House version—displacing current Article II restoration and qualification rules and entrenching the rewrite through Article XII.
HJ3	Passed	Sickles	Constitutional amendment (second reference); marriage between two adult persons; repeal of same-sex marriage prohibition; affirmative right to marry	Second-reference amendment repealing the Constitution's one-man-one-woman marriage definition and related provisions, and requiring the Commonwealth to issue and recognize marriage licenses for two adults without regard to sex, gender, or race. It displaces the text still sitting in the Virginia Constitution and locks an affirmative marriage rule into place through Article XII and equal-protection practice under Article I, Section 11.
SJ3	Passed	Ebbin	Constitutional amendment (second reference); marriage between two adult persons; repeal of same-sex marriage prohibition; affirmative right to marry	Senate twin marriage amendment: strips the man-woman definition from the Constitution and mandates equal treatment of lawful marriages between two adults. Direct rewrite of the current constitutional marriage language and entrenchment of a new equal-treatment rule via Article XII.
HB964	Passed and approved	Price	Voter registration; restoration of political rights upon release from incarceration	Ordinary statute that invests felons with political rights—including the right to register—upon release from incarceration and rewires Department of Elections/DOC data flows to make that automatic, contingent on the related constitutional amendment. Until and unless Article II is amended, that restoration scheme conflicts with the Constitution's present disqualification and civil-rights restoration structure; the bill is the statutory attempt to implement the override.
HB1015	Passed and approved	Tran	Firearms; carrying concealed weapon by persons convicted of misdemeanor hate crime prohibited	Bars people convicted of certain misdemeanor assaults selected because of race, religion, gender, disability, gender identity, sexual orientation, color, or national origin from possessing or transporting firearms, ammunition, stun weapons, or explosives, or carrying concealed. That adds a new arms disability after a misdemeanor and conflicts with Article I, Section 13's right to keep and bear arms, while wrapping the ban around religion and identity categories that also implicate Article I, Sections 11 and 16.
HB909	Passed and approved	Shin	Elections; certain conduct prohibited at polling places applicable to locations for absentee voting	Extends polling-place conduct bans to absentee voting sites and expands the firearms exclusion zone from 40 feet to 100 feet around polling places, electoral-board meeting sites, recount buildings, and other voting locations. That attempts to push Article I, Section 13 arms rights farther from election sites and tightens speech and assembly near the ballot under Article I, Section 6 and Article II.
HB334	Carried over to 2027	Rasoul	Additional local sales and use tax to support schools; referendum	Lets every locality put a referendum on an extra local sales-and-use tax of up to one percent for school capital projects, and drops the current expiration-date requirement that applies in the few localities already authorized. That stretches Article X taxation and Article IV special-laws discipline by turning a narrow local tax grant into a statewide option, and ties school finance to Article VIII while routing the levy through Article II referendum machinery.
HB1342	Passed and approved	Bulova	City of Fairfax; amending charter; elections; compensation for members of boards or commissions	Amends the City of Fairfax charter: swaps a charter cap on transient occupancy tax for general-law authority, aligns municipal elections with November, and lets City Council set board/commission pay without the old \$50-per-meeting ceiling. As a special charter rewrite it presses Article VII local-government and Dillon Rule limits and Article IV special-legislation concerns while rewriting local election timing under Article II.

Bill	Status	Patron	Title	Constitutional conflict
HB552	Passed and approved	Anderson	City of Williamsburg; amending charter; change of municipal elections	Amends the Williamsburg charter to move municipal elections to November as general law requires, retitles finance officers, and clarifies transfer of unencumbered balances. Special-act charter surgery under Article VII that also resets local election machinery under Article II and sits in Article IV's special-laws lane.
SB581	Passed and approved	Salim	City of Fairfax; amending charter; elections; compensation for members of boards or commissions	Senate twin Fairfax charter bill: same tax-cap swap, November election alignment, and board-compensation rewrite. Same Article VII / Dillon Rule and Article IV special-act tension, plus Article II election timing.
HB168	Passed and approved	Askew	Election of certain governing bodies; conversion to single-member districts	Forces every locality of 400,000 or more to elect its governing body from single-member districts (presiding officer may still run at large) and to reapportion accordingly. That overrides local choices about at-large or mixed systems under Article VII and rewires representation under Article I, Section 6 and Article II by statewide mandate rather than local charter choice.
SB51	Passed and approved	Rouse	Election of certain governing bodies; conversion to single-member districts	Senate twin single-member-district mandate for large localities, with a savings clause for maps adopted before 2026. Same usurpation of local governing-body structure under Article VII and suffrage/representation rules under Articles I and II.
HB835	Passed and approved	McClure	Elections; candidates and elected officials; confidentiality of personally identifiable information	Lets candidates hide street address, phone, and email from FOIA releases, substitute a voter-ID number on filings, and lets elected officials publish a P.O. box instead of a street address on voter lists. That restricts public access to candidate and official identity information tied to elections under Article II and presses against Article I, Section 12's speech, press, and petition openness around political actors.
HB868	Carried over to 2027	Cousins	Political campaign advertisements; synthetic media; penalty	Bans publishing or broadcasting electioneering communications that contain "synthetic media" without a fixed disclaimer, with civil penalties up to \$25,000, a Class 1 misdemeanor for willful violations, and injunctive suits by registered voters. That is a content-and-form speech regulation aimed at campaign messages and conflicts with Article I, Section 12, while sitting inside Article II's elections frame.
HB972	Passed and approved	Price	Voter registration; list maintenance activities; cancellation procedures; required record matches	Rewrites voter-list maintenance: required ID fields on incoming lists, confidence-score matching, bans on using out-of-state files without unique identifiers, and tighter cancellation procedures. It reshapes who stays on or comes off the rolls under Article II and Article I, Section 6, and cabins how election administrators may act on imperfect data.
SB632	Passed and approved	Aird	Elections; candidates and elected officials; confidentiality of personally identifiable information	Senate twin candidate/elected-official address-confidentiality bill. Same conflict: throttles public and petition visibility of political actors under Article I, Section 12 while rewriting election-filing transparency under Article II.
HB131	Passed and approved	Simon	Public institutions of higher education; reasonable accommodations for religious beliefs	Orders every public college to give "reasonable accommodations" for students' religious beliefs and practices on admissions, attendance, exams, and assignments, and to publish a grievance process. That legislates religion-and-education practice inside Article I, Section 16's free-exercise and non-establishment balance and Article I, Section 11 equal-treatment concerns on campus.
HB221	Passed and approved	Hope	Appeals bond; indigent parties; appeal of unlawful detainer	Removes the appeals-bond requirement for indigent defendants appealing unlawful-detainer (eviction) judgments from general district court. That rewrites access-to-courts and property/due-process balance under Article I, Sections 8–11 for landlord-tenant appeals.
HB359	Carried over to 2027	Helmer	Private elementary or secondary schools; use of public funds for tuition; standards	Conditions use of listed public funds for private K–12 tuition on SOL testing, Board of Education accountability ratings, and a broad non-discrimination ban covering religion, sex, sexual orientation, gender identity, and more. That attempts to pull private and often religious schools under Article VIII public-education controls and Article I, Section 16 / Section 11 rules whenever public money touches tuition.
HB342	Passed and approved	Martinez	Judicial Inquiry and Review Commission; magistrates; availability of complaint forms in courthouses	Requires paper JIRC and magistrate complaint forms in every state courthouse clerk's office and posted signs telling the public where to find them. It inserts statutory process into the judicial-discipline and magistrate apparatus under Article VI and Articles III/IV separation-of-powers lines, and expands public complaint channels tied to Article I due-process expectations.

Bill	Status	Patron	Title	Constitutional conflict
HB650	Passed then vetoed	Callsen	Courthouses; certain civil arrests prohibited; penalty	Would have banned specified federal civil immigration enforcement in courthouses and other "protected" state sites (polling places, hospitals, schools, higher ed, Commonwealth's Attorney offices), with limits on civil arrests in courthouses. That attempts to use state criminal/process rules under Article I and court control to obstruct federal civil immigration activity—an override fight at the edge of state constitutional process and federal supremacy.
SB351	Passed then vetoed	Salim	Courthouses; certain civil arrests prohibited; penalty	Would have privileged parties, household members, and accompanying witnesses from civil arrest while going to, attending, or leaving court, and required judicial warrants plus courthouse-security gatekeeping before civil arrests inside courthouses. Same attempt to wall off courthouse process under Article I due-process and court-control principles from civil immigration arrests.
HB110	Passed and approved	Laufer	Handguns in unattended motor vehicles; civil penalty	Makes it unlawful to leave a handgun visible in an unattended motor vehicle, with a civil penalty up to \$500 and possible towing for safekeeping. That regulates how lawfully owned handguns may be kept and transported and conflicts with Article I, Section 13's right to keep and bear arms.
HB123	Passed and approved	Reaser	Delinquent children; loss of driving privileges for alcohol, firearm, and drug offenses; truancy	Gives courts discretion—instead of a mandatory order—to deny driving privileges when a child fails school attendance rules, and requires surrender of the license into court custody when denial is ordered; the title still ties the chapter to alcohol, firearm, and drug delinquency. It softens a mandatory collateral penalty inside that juvenile enforcement title. The summary's concrete change is the truancy discretion and license-surrender rule, which rewrites mandatory juvenile penalties adjacent to the firearms-offense license framework under Article I due-process practice.
HB1334	Passed and approved	Feggans	Militia state active duty; cyber-related support	Adds "cyber-related support" to the list of reasons the Governor may call the militia to state active duty. That expands executive use of the militia under Article I, Section 13 beyond the traditional instances named in statute.
HB1524	Passed and approved	McGuire	Assault firearms; carrying in public areas prohibited; exceptions; penalty	Statewide ban on carrying defined "assault firearms" (including certain semi-automatic rifles, pistols, shotguns, and modified firearms) in public streets, parks, and other public places, with limited exceptions—broader than the old loaded-only, locality-limited rule. Direct conflict with Article I, Section 13's right to keep and bear arms in public.
HB1525	Passed and approved	McGuire	Certain firearms; possession, transportation, or purchase by certain persons; penalty	Tightens bans on under-18 possession/transport of handguns and assault firearms and adds an under-21 purchase ban for those firearms statewide. Attempts to shrink who may acquire and carry common arms under Article I, Section 13.
HB1401	Passed and approved	Franklin, M.A.	Eminent domain; certificate of take; description of property	Lets a certificate of take describe condemned property with a mix of plats, drawings, or plans. Narrow eminent-domain procedure tweak, but it still operates inside Article I, Section 11's takings and property due-process rules for how the Commonwealth seizes land.
HB446	Passed and approved	Simon	Virginia Passenger Rail Authority; expands authority to exercise power of eminent domain	Expands the Virginia Passenger Rail Authority's power to take private property by eminent domain. That widens who may force a taking under Article I, Section 11's just-compensation and due-process limits.
SB342	Passed and approved	Perry	Condemnation of conservation or open-space easement; compensation	When land under a conservation or open-space easement is condemned, requires extra compensation to the Commonwealth and locality for tax credits and listed values, on top of other compensation. Rewrites the Article I, Section 11 takings bargain by stacking additional public payoffs onto condemnation of easement-burdened land.
HB919	Carried over to 2027	Lopez	Retail sales and use tax; firearm and ammunition tax	Imposes an 11 percent retail tax on firearms and ammunition sold by dealers, manufacturers, or ammunition vendors, with proceeds to the Gun Violence Intervention and Prevention Fund. A selective tax aimed at the exercise of Article I, Section 13 arms rights.
HB926	Carried over to 2027	Lopez	Outdoor shooting of firearm on property without reasonable care; prohibition; penalty	Lets localities ban outdoor shooting unless it is on at least five acres and done with "reasonable care" so projectiles stay on the property, with a presumption against cross-boundary shots and Class 1 misdemeanor penalties. Local ordinances that criminalize ordinary arms use conflict with Article I, Section 13.
SB337	Passed and approved	Perry	Virginia National Guard; reports to General Assembly; state militias	Requires Adjutant General reports to the General Assembly, bars the Governor from calling the Guard to intimidate voters, restricts out-of-state armed militia entering Virginia over the Governor's objection, and adds legislative request rights. Rewrites militia command and deployment rules under Article I, Section 13 and the Governor's militia authority.
SB763	Carried over to 2027	Williams Graves	Retail sales and use tax; firearm and ammunition tax	Senate-side 11 percent tax on manufacturer sales/distribution of firearms and ammunition, proceeds intended for gun-violence prevention, delayed to 2027. Same Article I, Section 13 conflict: a special tax on the arms trade.

Bill	Status	Patron	Title	Constitutional conflict
HB111	Passed then vetoed	Laufer	Voter registration; cancellation of registration; sources of data	Would have barred general registrars from cancelling registrations based on data from anyone other than the Department of Elections or a State Board–approved state agency (except voter request or a governmental death certificate), and restored protections for certain overseas and military voters. That cabins list-maintenance power under Article II and Article I, Section 6 and overrides broader cancellation practices registrars use today.
HB639	Passed then vetoed	Krizek	Elections; administration; acceptance of certain gifts and funding; approval required	Would have lifted the ban on private gifts and services for voter education, registration, and election expenses, allowing gifts over \$1,000 with two-thirds approval of the State Board or local governing body. That reopens private funding of election administration under Article II and Article I, Section 6—attempting to override the current firewall against outside money in running elections.
HB421	Carried over to 2027	Cole, N.T.	Eminent domain; condemnation of public waterworks systems; determination of lost profits	In locality condemnations of waterworks, forces the just-compensation body to weigh rate differences between the condemnor and the owner when measuring lost profits, with court power to reduce that figure. Rewrites how Article I, Section 11 "just compensation" is calculated for utility takings.
HB162	Carried over to 2027	Simon	Public campaign financing; counties and cities may establish for certain offices	Authorizes counties and cities to create public campaign-financing systems for local offices, with a local public election fund and stricter rules for participating candidates under State Board oversight. Uses public money and local ordinance power to reshape campaign speech and election funding under Article II and Article I, Section 12.
HB235	Carried over to 2027	Gardner	Elections; districts, precincts, and polling places; pilot program for super precincts	Authorizes a State Board pilot of "super precincts" and vote centers in selected large localities after unanimous Board approval of a local plan. Experiments with collapsing traditional precincts under Article II election administration and Article I, Section 6's free-elections structure.
HB836	Passed and approved	Rasoul	Public schools; right to free public elementary and secondary education; discrimination	Bars denying free public K–12 education based on immigration or citizenship status and forbids listed school, SRO, and employee practices that would deny schooling or assist immigration enforcement on campus. It legislates Article VIII schooling and Article I, Section 11 equal-protection practice into an immigration-sanctuary posture that attempts to override cooperation choices schools and localities would otherwise make.
SB491	Passed and approved	Pekarsky	Public schools; right to free public elementary and secondary education; discrimination	Senate twin school/immigration bill with a civil cause of action layered on. Same attempt to lock Article VIII free-schooling and Article I equal-protection language into anti-enforcement rules inside public schools.
HB1392	Passed then vetoed	Keys-Gamarra	Local and regional correctional facilities and courthouse security; powers and duties	Would have forced sheriffs who wave courthouse employees through security to do the same for attorneys showing a Virginia bar card and ID, created a misdemeanor for using a bar card after suspension/revocation, and required jail standards guaranteeing attorney access to incarcerated clients. Rewrites courthouse security and counsel-access rules under Article I criminal-procedure/ due-process sections and Article VI judicial administration.
HB246	Passed then vetoed	Watts	Mental illness, neurocognitive disorder, etc.; affirmative defense or reduced penalty	Would have created an affirmative defense or path to reduced penalty for certain enhanced assault-and-battery prosecutions when the conduct stemmed from mental illness, neurocognitive disorder, intellectual or developmental disability, or emergency-custody criteria. Rewrites criminal responsibility and mandatory-minimum structure under Article I, Sections 8–11.
SB23	Passed then vetoed	Salim	Plea agreements and court orders; prohibited provisions	Would have voided plea-agreement or court-order clauses that waive Fourth Amendment / Article I, Section 10 search-and-seizure rights, expungement petition rights, or sealing rights (with limited case exceptions). Uses statute to override bargained waivers inside the criminal process governed by Article I, Sections 8–11.
SB335	Passed then vetoed	Boysko	Mental illness, neurocognitive disorder, etc.; affirmative defense or reduced penalty	Senate twin affirmative-defense / reduced-penalty bill for mental illness and related conditions in enhanced assault cases. Same rewrite of criminal liability under Article I, Sections 8–11.
SB83	Passed then vetoed	Salim	District or circuit court; possession of portable electronic devices	Would have required chief judges to set portable-electronic-device policies for courthouses, authorized conditions on those devices, and mirrored the attorney security-line bypass rules. Legislates courtroom security and possession rules inside Article I process protections and Article VI judicial control of courthouses.
HB85	Carried over to 2027	Laufer	Virginia-specific postsecondary transition counselor certificate program; development and establishment	Orders SCHEV to build a Virginia-specific postsecondary transition-counselor certificate with public education-prep programs and an outside national body. The title and summary do not show a religion clash; the strongest constitutional point the sources support is the General Assembly directing higher-education program structure under Article VIII and the administrative apparatus that serves it.

Bill	Status	Patron	Title	Constitutional conflict
SB97	Carried over to 2027	Roem	Hunger-Free Campus Grant Program; student meal plan credit donation program	Expands the Hunger-Free Campus grant program so public and eligible private colleges must run food pantries and meal-credit donation schemes to keep grant status. Directing public funds and program rules into private institutions of higher education implicates Article VIII education finance and, where those campuses are religious, Article I, Section 16's limits on compelling support for religious institutions—the sharpest conflict the summary will bear.
HB127	Carried over to 2027	Callsen	Person not free on bail; court appearance; right to counsel	Rewrites bail-hearing practice where public defenders exist: appointment of counsel, time to confer before bail hearings, local implementation plans by November 2026, and a January 2027 start. Attempts to mandate counsel and hearing structure under Article I, Sections 8–11 bail and counsel guarantees.
HB1476	Passed and approved	Schmidt	Law-enforcement civilian oversight bodies; disclosure of certain law-enforcement records	Gives law-enforcement civilian oversight bodies FOIA closed-meeting cover and broader access to sensitive police and juvenile records, plus certain sexual-assault/family-abuse disclosures. That shifts transparency and speech/press access to government records under Article I, Section 12 and creates special information rules outside ordinary statewide FOIA treatment (Article IV uniformity concerns).
HB240	Carried over to 2027	Gardner	Admission to bail; fixing terms of bail; mental health considerations	Requires judicial officers to pull criminal history and any ECO/TDO/involuntary-admission history before bail hearings and to weigh those mental-health orders when setting bail terms. Tightens and redirects bail discretion under Article I, Sections 8–11.
HB35	Carried over to 2027	Cole, J.G.	Restorative housing and isolated confinement; restrictions on use	Bans most isolated confinement in state prisons, forces less-restrictive alternatives first, and requires rapid review plus medical/mental-health evaluation when restrictive housing is used. Legislates conditions of confinement against Article I due-process and cruel-treatment principles as applied to the corrections system.
HB852	Carried over to 2027	Cousins	Indigent defendant; abolition of fees; legal representation; jury trial costs	Would abolish fees for court-appointed counsel/public defenders for indigents and fees for jury trials (with a reenactment clause) and launch a stakeholder work group. Rewrites the cost structure of counsel and jury rights under Article I, Sections 8–11.
HB853	Carried over to 2027	Cousins	Petition for modification of a sentence; eligibility; procedures	Creates a petition path for long-serving felony inmates to ask the original circuit court to suspend, concurrentize, probate, or otherwise modify sentences after 15–25 years depending on the offense. That attempts to reopen final judgments and shift sentencing finality under Article I criminal-process rules and Article VI judicial power.
HB863	Carried over to 2027	Cousins	Certain offenses; elimination of mandatory minimum sentences	Eliminates mandatory minimum terms of confinement for a list of offenses. Directly overrides legislatively entrenched punishment floors inside the criminal-sentencing structure governed by Article I, Sections 8–11 and the Assembly's prior mandatory-minimum scheme.
SB412	Carried over to 2027	Boysko	Court appearance of a person not free on bail; changes to provisions regarding hearings	Senate-side rewrite of bail-hearing counsel appointment, information sharing, conferral time, and compensation, with circuit plans and a delayed effective date. Same Article I, Sections 8–11 attempt to mandate pretrial counsel process statewide.
HB1473	Carried over to 2027	Schmidt	Public institutions of higher education; restrictions on student speech; limitations	Tightens when public colleges may regulate student speech in outdoor campus areas, bans policies that punish First Amendment–protected student/faculty/staff speech, and adds process when speech is deemed unlawful. Framed as protecting speech, it still has the General Assembly scripting campus speech rules under Article I, Section 12—and limiting institutional authority in that constitutional lane.
HB1173	Passed then vetoed	Tran	Virginia Human Rights Act; reasonable accommodation for known limitations related to menopause	Would have added menopause and perimenopause as protected bases under the Virginia Human Rights Act for government programs, public accommodation, hiring, and reasonable accommodation, plus a state study. Expands statutory anti-discrimination duties that ride on Article I, Section 11 equal-protection practice.
HB1385	Passed then vetoed	Franklin, L.V.	Public institutions of higher education; membership of governing boards	Would have swollen the Higher Education Board Appointments Commission, tightened when committee rejection of a gubernatorial appointee counts as a constitutional refusal to confirm, and rewritten governing-board membership/legal-counsel rules. That presses the confirmation and appointment balance among Governor and General Assembly under Articles IV and V and the structural lines of Articles III and VIII for higher-ed governance.
HB449	Passed then vetoed	Simon	Civil actions filed on behalf of multiple persons; class actions	Would have created a full Virginia class-action procedure, including certification, counsel duties, settlements, Consumer Protection Act damages for classes, and interlocutory appeals of certification orders. That is the legislature writing new judicial procedure and remedial power into the courts under Articles III, IV, and VI—an attempt to reshape how the judiciary processes mass claims.

Bill	Status	Patron	Title	Constitutional conflict
SB229	Passed then vetoed	Surovell	Civil actions filed on behalf of multiple persons; class actions	Senate twin class-action bill. Same separation-of-powers conflict: statutory redesign of judicial class procedure under Articles III, IV, and VI.
SB258	Passed then vetoed	Pekarsky	Virginia Human Rights Act; reasonable accommodation for known limitations related to menopause	Senate twin menopause/perimenopause Human Rights Act expansion. Same Article I, Section 11 equal-protection statutory overlay.
SB494	Passed then vetoed	Deeds	Public institutions of higher education; membership of governing boards	Would have lengthened public higher-ed board terms to six years, forced "shared governance" policies, and tasked SCHEV work groups on appointment and removal processes. Rewrites institutional governance and appointment architecture under Articles III, IV, and VIII.
SB137	Passed and approved	Pekarsky	Obstructing health care facility; penalties	Creates a Class 1 misdemeanor for force, threat, or physical obstruction that injures, intimidates, or interferes with people obtaining or providing reproductive health services, or for damaging such a facility—while claiming not to restrict message content. That is a buffer-zone-style speech and assembly restriction around clinics under Article I, Section 12, aimed at abortion-related protest and presence.
HB1364	Carried over to 2027	Henson	Employment discrimination against members of the General Assembly; prohibition; penalty	Makes it a Class 3 misdemeanor for employers to discriminate against General Assembly members for absences caused by session or legislative meetings. Special employment protection for legislators that sits on Article I, Section 11 equal-protection practice and the Assembly's own privileges.
HB441	Carried over to 2027	Hope	Judicial Inquiry and Review Commission; reform; increases membership	Expands JIRC membership, changes how attorney members are chosen, adds training and ethics codes, and rewrites complaint-handling duties. Statutory remodel of the constitutional judicial-discipline commission under Article VI and separation-of-powers lines in Articles III and IV.
HB195	Passed and approved	McQuinn	Programs for at-risk students; permissible uses of funding	Lets At-Risk Program school funds pay for student physical and mental health initiatives, including hiring LPNs, RNs, and APRNs. Redirects Article VIII education funding streams toward health staffing inside the public-school finance structure.
HB29	Passed and approved	Torian	Budget Bill	Caboose/budget bill amending the prior biennium appropriation act. Budget bills are where policy riders and appropriation conditions often hitch a ride; the constitutional pressure point is Articles IV and X process limits on how the Assembly may bind spending and sneak substantive policy into money bills.
HB30	Passed and approved	Torian	Budget Bill	Main biennial Budget Bill appropriating revenues for the years ending June 30, 2027 and June 30, 2028. Same Articles IV and X concern: the vehicle that can override or condition programs across government through appropriation language rather than freestanding statutes.
HB278	Carried over to 2027	Clark	Local anti-rent gouging authority; civil penalty	Authorizes any locality to pass an anti-rent-gouging ordinance capping most rent hikes (max three percent allowance), mandating 90-day notice, creating a local exemption board, and attaching civil penalties. That is a statewide Dillon Rule grant attempting to let localities regulate private rents under Article VII in an area localities historically lacked power to enter without General Assembly permission—and it still leaves property and contract interests under Article I, Section 11 in the blast radius.

Limits of this paper

This analysis rests on LIS titles and summaries plus the Virginia Constitution text as applied in the conflict column. It is not a court opinion and not a substitute for full bill-text and fiscal-impact reads. Deeper line-by-line bill reads can follow on any single measure.



Coraggio Consulting, LLC · Virginia Political Intelligence Portal